

NON-DISCLOSURE AGREEMENT

THIS AGREEMENT (“Agreement”) is made between _____, (“Company”) and the **Tribe** (“Nation”), a sovereign tribal nation located within the boundaries of the State of (Insert state). Company and Nation are each referred to herein as a “Party” and collectively as the “Parties.” This Agreement governs the disclosure of confidential information by and between the Parties.

WHEREAS, Company has made a proposal (“Proposal”) to provide goods and/or to perform professional services (“Services”) for Nation; and

WHEREAS, in connection with the Proposal and any actions taken in furtherance of providing goods and/or services to Nation, Company is in need of certain Confidential Information belonging to Nation; and

WHEREAS, Nation agrees to provide certain Confidential Information at its discretion, subject to the terms of this Agreement.

Company hereby agrees as follows:

1. Confidential and Proprietary Information. (a) Company acknowledges and agrees that in connection with the proposal or the provision of goods or services, Nation shall divulge to Company and its employees, agents, and/or representatives certain proprietary and confidential information which, for purposes of this Agreement, shall mean and include any and all information about Nation and Nation’s business, Nation’s non-public information, Nation’s patrons or customers, technical data or know-how including, but not limited to, salaries, pricing, expenses, margins, revenues and other financial information; technical data, production data, technical designs, detail designs, network configurations and topologies, test data and results, flowcharts, drawings, designs, graphs, diagrams, notes, outlines and the like created in connection with any services or with any of Nation’s activities, and all formulas, processes, algorithms, ideas, inventions, know-how, techniques and other information of a general and technical nature, whether in tangible or intangible form; marketing, distribution, promotion, sales or advertising processes, programs, projections or proposals; consulting or other business projects or proposals; all customer lists, requirements, product usage and other customer data; sales procedures, volume figures and strategies; supplier lists; personnel information including compensation, incentive compensation and bonus structures, employment agreements, performance standards, performance evaluations and all information in any way concerning the products, projects, activities, business or affairs of Nation or its affiliates or customers; business or marketing plans; security processes or precautions; customer or vendor lists; and any other information not listed but that is designated as confidential by Nation, or which by its nature should reasonably be expected to remain confidential.
 - a) Confidential Information shall not include:
 - i. Information that is disclosed to Company by any third party which is not under a confidentiality obligation to Nation;
 - ii. Information that the Nation itself discloses to the public;
 - iii. Information that is already legally in the possession of Company at the time of disclosure by Nation as shown by the Company’s files and records immediately prior to the time of disclosure;
 - iv. Information that was publicly known and made generally available prior to the time of disclosure;
 - v. Information that becomes publicly known and made generally available after disclosure by Nation to Company through no action or inaction of Company; or